

8.	24CV2747	DEMEYER v. PALASHEWSKI
OSC re Defendant's Fee Waiver		

Plaintiff's Motion does not comply with Local Rule 7.10.05. Repeated failure to comply with the requirements of the Local Rules may result in sanctions, pursuant to Local Rule 7.12.13. Plaintiff was previously warned in the June 13, 2025, tentative ruling.

Pursuant to Cal. Gov't. Code §68632, the Court must grant permission for a litigant to proceed without paying court fees or costs when the litigant submits, under penalty of perjury, an application stating the applicant meets financial eligibility criteria. However, "if...the court obtains information...suggesting that a person whose fees and costs were initially waived is not entitled to a fee waiver...the court may require the person to appear at a court hearing." Cal. Gov't. Code §68636(b). "The court may require the person to provide reasonably available evidence, including financial information, to support his or her eligibility for the fee waiver." *Id.* "Under circumstances set forth in Section 68636, the court may reconsider the initial fee waiver and order the fee waiver withdrawn for future fees and costs or deny the fee waiver retroactively." Cal. Gov't. Code §68631. "[I]f the court determines that the person was not entitled to the initial fee waiver at the time it was granted, the court may order the waiver withdrawn retroactively. The court may order the person to pay to the court immediately, or over a period of time, all or part of the fees that were initially waived." Cal. Gov't Code §68636(d).

The statute refers to the court having the ability to reconsider a fee waiver based on new information. What the statute does not do is provide standing for other parties to the action to bring a motion to revoke the fee waiver. The grant or denial of a fee waiver is between the court and the individual. Other parties to the action are not parties to the fee waiver request. The request and the information supporting the request are not served on other parties and are in fact confidential to that party and the public. As Plaintiff has no standing to bring the motion, Plaintiff's motion is denied.

TENTATIVE RULING #8: PLAINTIFF'S MOTION IS DENIED.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).

NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY TELEPHONE OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; EL DORADO COUNTY LOCAL RULE 8.05.07. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.

April 17, 2026
Dept. 9
Tentative Rulings

LONG CAUSE HEARINGS MUST BE REQUESTED BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED AND THE PARTIES ARE TO PROVIDE THE COURT WITH THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. LONG CAUSE ORAL ARGUMENT REQUESTS WILL BE SET FOR HEARING ON ONE OF THE THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. THE COURT WILL ADVISE THE PARTIES OF THE LONG CAUSE HEARING DATE AND TIME BY 5:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. PARTIES MAY PERSONALLY APPEAR AT THE HEARING. APPEARANCES REQUIRED ON FRIDAY, APRIL 17, 2026, AT 8:30 AM IN DEPARTMENT NINE. DEFENDANT TO PROVIDE THE COURT WITH VENMO TRANSACTION HISTORY IN ADDITION TO DETAILED BANK STATEMENTS THAT SHOW THE MONTHLY INCOME.